Republic of the Philippines
PROVINCE OF BOHOL
Municipality of Ubay

OFFICE OF THE SANGGUNIANG BAYAN

Session No. 33 August 15, 2006

EXCERPT FROM THE MINUTES OF THE REGULAR SESSION OF THE SANGGUNIANG BAYAN OF UBAY, BOHOL HELD AT THE SB SESSION HALL ON AUGUST 15, 2007.

Present: Hon. Nelson L. Uy - OIC Presiding Officer and nine (9) SB Members

Absent: NONE

O.B. Hon. Galicano E. Atup - Mun. Vice Mayor

Ordinance No. 13
S. 2006

AN ORDINANCE CREATING THE UBAY MUNICIPAL MULTI-SECTORAL STD/HIV COUNCIL FOR THE PREVENTION AND CONTROL OF SEXUALLY TRANSMITTED DISEASES INCLUDING HIV WHICH CAUSES A.I.D.S DEFINING ITS FUNCTIONS, PROVIDING FUNDS AND FOR OTHER PURPOSES.
(Sponsored by Kag. Roselima C. Abapo)

Whereas, the Republic, in recognizing the importance of the health condition of its people, enunciates in Section 15 of the 1987 Philippine Constitution that " the state shall protect and promote the right and health of the people and instill health consciousness among them".

Whereas, the threat posed by the Acquired Immune Deficiency Syndrome (AIDS) is present and real, with its continued spread not only in the Philippines but also to all over the world, affecting people and communities everywhere, resulting to loss of close to 12 million lives and afflicting approximately 16,000 individuals a day, assuming a status as pandemic;

Whereas, AIDS was first recognized in the United States in 1981 and two (2) years later, the etiologic event, the Human Immune Deficiency Virus (HIV)was identified. By the late 1980's the virus was widely spread and has become so alarming that nations worldwide were taking necessary measures for its prevention and control.

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WHEREAS, in the Philippines, the presence of HIV was first detected in 1984 with the death of a foreign national from pneumonia brought about by AIDS. As of December 2001, the National AIDS Registry recorded a total of 1,611 HIV positive cases;

WHEREAS, although our country exhibits a low rate of HIV infection steps are undertaken to control and prevent the further spread of HIV infection that will reduce the impact on individuals, families and communities;

WHEREAS, for many years now, we have been fighting the battle against HIV/AIDS through STIHIVAIDS health education and counseling, harm reduction activities, early diagnosis and treatment of STI cases and HIV/AIDS surveillance;

WHEREAS, RA 8504, "An Act Promulgating Policies and Prescribing Measures for the Prevention and Control of HIV/AIDS in the Philippines, Instituting a Nationwide HIV/AIDS Information and Educational Program, Establishing a Comprehensive HIV/AIDS Monitoring System, Strengthening the National AIDS Council, and for other Purposes" was enacted and signed into law by President Fidel Ramos on February 13, 1998;

WHEREAS, RA 8504 mandates the organization of a Local Aids Council;

WHEREAS, local initiatives are critical in initiating and sustaining efforts to provide information and education, service and mobilization support in fighting AIDS/HIV. The local government should take the lead in the planning and organizing intervention activities for the prevention and control of the spread of this dreaded disease, HIV/AIDS;

WHEREAS, until a vaccine or treatment of HIV/AIDS is developed, prevention and control remain to be the most viable and practical options, with education for risk reduction and behavior change as the key strategy;

WHEREAS, to address this very serious political, social and health problem of the City, the creation of a Local Council for HIV/AIDS that will focus on the formulation of the municipality's policies and implement programs for the prevention and control of the disease is necessary;

WHEREAS, this ordinance has been duly endorsed by the Local Health Board of the Municipality of Ubay, Bohol;

NOW THEREFORE, Be it ordained by the Sangguniang Bayan of Ubay, Bohol, that:

ARTICLE 1. TITLE OF THE ORDINANCE:

This Ordinance shall bear the title: "The Ubay Multi-Sectoral STI/AIDS Council Ordinance". For brevity and easy reference, the short title "Local AIDS Council Ordinance" or "LAC Ordinance" shall be adopted.

ARTICLE 2. CREATION OF THE LOCAL AIDS COUNCIL:

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The Ubay Multi-Sectoral STI/AIDS Council for the prevention and control of STI/AIDS in the Municipality of Ubay is hereby being created. Moreover, the City Mayor shall enhance its creation with the issuance of an Executive Order naming its members.

ARTICLE 3. PURPOSE OF CREATION:

The LAC is created in order to be the central advisory, planning and policy making body with regards to the prevention and control of STI/HIV/AIDS.

ARTICLE 4. DEFINITION OF TERMS AND PHRASES:

For purposes of this Ordinance, the following terms and phrases shall bear the following definitions:

a. Acquired Immune Deficiency Syndrome (AIDS) – a condition characterized by a combination of signs and symptoms, caused by the HIV from another person, attacking and weakening the body's immune system, making the individual susceptible to other life-threatening infections.
b. Behavioral Surveillance – a systematic and regular collection of information on risk behaviors and co-factors of the transmission of the HIV infection among selected population groups;
c. Entertainment Establishments – business establishments that include, but are not limited to, bars, nightclubs, disco houses, beer houses, cocktail lounges, massage centers, karaoke bars, sing-along houses, videoke bars and other similar establishments that are required to secure a permit to operate within Ubay, Bohol;
d. Human Immune-Deficiency Virus (HIV) – refers to the virus which causes AIDS;
e. HIV/AIDS Education – the provision of information on the causes, prevention and consequences of HIV/AIDS and activities designed to assist individuals to develop the confidence and skills needed to avoid HIV transmission and to develop more positive attitudes towards people living with HIV/AIDS.
f. Peer Educator – a person belonging to the same group of same social network to the target population, who is trained to conduct HIV/AIDS health education activities.
g. HIV/AIDS Prevention and Control – the program, strategies and measures aimed at protecting non-infected persons from contracting HIV and minimizing the impact of the condition on people living with AIDS/HIV.
h. Prophylactic – refers to any agent or device used to prevent the transmission of the disease, i.e. condom.
i. Reproductive Health – a state of complete physical, mental and social well-being and not merely the absence of disease and infirmity in all matters relating to the reproductive health system and its functions.
j. Sexually Transmitted Infection (STI) – any disease that is acquired or transmitted through sexual contact.
k. Passive Surveillance – refers to the HIV registry in which the health authorities receive reports from physicians, clinics and laboratories of HIV/AIDS confirmed cases.

1. Active Surveillance – refers to sentinel serologic surveillance which a systematic and regular collection of blood samples to identify the distribution and trends of HIV infection among selected groups.

ARTICLE 5. COMPOSITION OF THE LOCAL COUNCIL FOR AIDS:

5.1 Mandated members of the Ubay Local AIDS Council:

Chairman	- Municipal Mayor
Vice-chairman	- SB Chairman, Committee on Health
Members	- SB Vice-chairman, Committee on Health
	- Municipal Health Officer
	- Municipal Schools Superintendent
	- Municipal Social Welfare Officer
	- One (1) representative from accredited organization of entertainment industry, (operators of bars, massage parlors, sauna, etc.)
	- Two (2) representatives from accredited non-government organizations (NGO) actively involved in programs, activities and advocacy with STI/HIV/ AIDS prevention.

5.2 Representations- The mandated members may designate a representative to represent them in their absence.

5.3 Selection of NGO representatives:

The Municipal Mayor is hereby empowered and authorized to select the Mandate Members from the entertainment industry and the NGOs based on recommendations from their group and guided by the following criteria:

1. For the entertainment industry, the appointee must be recommended by duly organized and accredited organizations, associations, union or similar groups from the industry or in the absence of such group the recommendation may come from other mandated members of the LAC.
2. For the NGO, two appointees must be recommended by a duly organized NGO association, or in its absence, several appointees may be recommended by the other mandated members of the LAC, for the Municipal Mayor to decide.

5.4 Term of office of the entertainment industry & NGO representatives.

The term of office of representatives from the entertainment industry and NGO shall be co-terminus with the office of the appointing authority; Provided, that the organization they are representing shall continue to function.

ARTICLE 6. POWERS AND FUNCTIONS OF THE LAC:

To attain the Purpose for which it was created, the Ubay Multi-Sectoral STI/AIDS Council shall be charged and vested with the following powers and functions:

1. Formulate policies and strategies for the prevention and control of STI/HIV/AIDS within Ubay, Bohol;

2. Prepare short, medium and long term plans for prevention and control.
3. Monitor and evaluate the implementation of the plans.
4. Organize and encourage owners, operators and managers of the entertainment establishments like sauna, massage parlors and similar businesses to actively participate in the program.
5. Identify and recommend priorities and gaps in local STI/HIV/AIDS related cases.
6. Conduct periodic public information, education and communication activities in the promotion of prophylactic activities, reproductive health, prevention and control of STI/HIV/AIDS in different communities and barangays.
7. Conduct regular seminars, fora and dialogues in all government institutions and agencies and its subdivisions whether national or local, including government owned or controlled corporations located in the Municipality, as well as private establishments, and to distribute, disseminate, circulate, publish or broadcast modules, pamphlets, booklets, brochures or other forms of info-materials be it written, verbal, audio or video.
8. Conduct yearly STI/HIV/ AIDS Serological and Behavioral Surveillance in coordination with the Social Hygiene Clinic (SHC-CHO) and the Department of Health (DOH) among the people with high risk sexual behavior or those who, by nature of their work, are prone to contacting HIV/STI/AIDS.
9. Initiate skills training, advocacy programs and develop strategies to benefit the people with the high risk of contacting STI/HIV/AIDS.
10. Monitor, inspect, examine regularly the facilities, practices and procedures of hospitals, medical/dental clinics, medical/dental laboratories, medical/dental testing centers and blood banks located in the Municipality, public or private, and evaluate whether or not they have complied with the existing standards in the prevention and containment of STI/HIV/AIDS.
11. Recommend to the Sangguniang Bayan enactment of resolutions and ordinances that promote prevention and control of STI/HIV/AIDS.
12. Recommend the closure or imposition of sanctions or penalties of any establishment in violation of related laws, national or local.
13. Recommend to the Sanggunian the appropriation of funds.
14. To act as the primary agency that shall represent the Municipality in conventions, conferences, forum or gathering of other agencies, organizations, leagues, chambers of other groups whether local, national or international.
15. To coordinate with the CHO in the monitoring of cases.
16. To identify STI/HIV/AIDS cases through active and passive surveillance, and
17. To perform such other functions related to the purpose for which LAC was created.

ARTICLE 7. MEETINGS:

7.1 The LAC shall meet at least once a month. However, if the need arises, a special meeting shall be called, with the notice of meeting delivered at least the day prior to the activity.

7.2 Quorum: The presence of at least a majority of all members shall constitute a quorum. If the required number is not met, the LAC may still conduct a meeting but shall limit itself to discussions and proposals for decisions the moment a quorum is established.

7.3 The Secretary: The Council shall have a Secretary who shall be designated by the Municipal mayor, taken from the organic personnel of the Municipal Government, preferably from the Municipal Health Department.

7.3.1 Functions of the Secretary:

1. Prepare the agenda of the meetings of LAC and record the minutes.
2. Keep all records of LAC.
3. Submit an annual report to LAC within two (2) months after the close of each fiscal year.
4. Oversee the implementation of Plans.
5. Perform such other functions that may be required by LAC.

ARTICLE 8. INTER-AGENCY RELATIONS:

LAC shall establish linkages with all agencies in Government and the Private Sector, especially the DOH, represented in the Municipality by the CHO. All information about LAC and its activities shall be available in the incoming Website of the Municipality, save for the information covered by the rules on confidentiality.

ARTICLE 9. HONORARIA:

Subject to existing laws, the members of LAC, including its Secretary, may be entitled to Honoraria during meetings and field work, subject to an Executive Order from the Municipal Mayor.

SECTION 10. – SEPARABILITY CLAUSE. – If any section or provision of this Ordinance is held unconstitutional or invalid, the same is separable and does not effect other provisions otherwise valid and binding.

SECTION 11. – REPEALING CLAUSE. – All Ordinances, local issuances and rules and regulations inconsistent with the provisions of this Ordinance are hereby repealed or modified accordingly.

SECTION 12. – EFFECTIVITY CLAUSE. – This Ordinance shall take effect upon approval thereof and after publication in a newspaper of general circulation in the province of Bohol and/or the Municipality of Ubay.

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Let copies of this ordinance be furnished to all authorities for their information and consideration.

Adopted.

I hereby certify to the correctness of the foregoing ordinance, which was duly adopted by the Sangguniang Bayan of Ubay, Bohol, Philippines during its regular session on August 15, 2006.

FELIX C. CUTAMORA
SB Member

Attested:

(SGD) HON. GALICANO E. ATUP
Vice Mayor/Presiding Officer

Approved:

(SGD) HON. EUTIQUIO M. BERNALES, M.D.
Municipal Mayor